# MASON WOODS COMMUNITY ASSOCIATION, INC.
# FACILITY RENTAL APPLICATION AND AGREEMENT

## SECTION 1: FACILITY RENTAL DETAILS

Date Application Received: _____

**Applicant Information**

Applicant Name: _____
*(*Applicant must be (i) 21 years of age or older, (ii) be a legal owner or lessee of residential property in Mason Woods, and (iii) show proof of residence in Mason Woods.)*

Mason Woods Address: _____

Home Telephone: _____ Work Telephone: _____

Mobile Telephone: _____ Email: _____

Alternate Contact Person: _____ Telephone: _____

---

**Facility Reservation Information**

Requested Date of Rental Event: _____ Alternate Date: _____

Start Time: _____AM/PM End Time: _____AM/PM
*(*Setup by caterers can begin 1hour prior. Only caterers may access the Facility one hour prior to start time and only security officers may access the Facility 30 minutes prior to start time.)*

Total Event Duration: _____ (not including the setup time)

---

**Event Information**

Type of Event/Purpose: _____
_____
_____
_____

Number of Guests: _____ Range/Average Age of Guests: _____

Food & Beverage Service: Yes / No If yes: _____ Catered _____ Not Catered (Private)
(*Please note that alcohol is not permitted in the Facility*)

Will there be entertainment? Yes / No If yes, describe type: _____

Please list and describe any equipment you plan to bring into the Facility: _____
_____
_____
*(Please note that equipment may not be delivered to the Facility prior to the 1-hour setup timeframe for caterers and must be removed at the end of the rental period. Equipment may not be brought into the Facility without advance notice to the Association.)*

Copyright © 2024 by Roberts Markel Weinberg Butler Hailey PC, all rights reserved.

Please list and describe any special requests for the rental event: _____
_____
_____
_____

---

**SECURITY:**

Mason Woods Community Association, Inc. (the "***Association***") may require that uniformed security officers be present at the Facility during the rental event depending on the size of the group and type of rental event. Applicants are responsible for the cost of all security officers required by the Association.

**ASSOCIATION TO FILL OUT:**

Number of Security Officers Required: _____ Security Hours: Start: _____ End: _____

**Applicant Initials:** _____

---

**FACILITY RENTAL POLICY:**

Applicant agrees to comply, and cause all his or her agents, contractors, licensees, invitees, participants, and guests to comply, with the terms of the Mason Woods Community Association, Inc. Facility Rental Policy (the "***Policy***") that is recorded in the Official Public Records of Harris County, Texas.

---

**INSURANCE:**

Applicant must carry a homeowner's insurance policy and provide proof of such policy upon request by the Association. The Applicant understands and agrees that the Applicant's insurance policy will be primary in the event of a loss or claim related to the use of the Facility.

**ASSOCIATION TO FILL OUT:**

During the term of this Agreement, Applicant (check each option that applies):

□ must carry event insurance specified on **Exhibit A**, attached to and incorporated in this Agreement for all purposes.

□ need not obtain event insurance.

**Applicant Initials:** _____

---

## SECTION 2: INDEMNIFICATION

**1. Indemnification:**

Applicant acknowledges the inherent risks involved in the use of the Facility (including the serving of food, as applicable per this Agreement), including, but not limited to, bodily injury, sickness, disease, and death. Applicant also acknowledges that use of the Facility is potentially dangerous and that the type of injury or damage described

Copyright © 2024 by Roberts Markel Weinberg Butler Hailey PC, all rights reserved. 

above can occur when using the Facility. Applicant acknowledges that the Applicant's use of the Facility is done with full knowledge and disclosure of the risks and dangers associated with such use. Applicant must comply (and must cause any guests, invitees, or licensees of Applicant to comply) with the Association's rules, regulations, guidelines, policies, and restrictions and any local or federal guidance or rules governing Applicant's (and Applicant's guests', invitees', and licensees') use of the Facility.

APPLICANT ASSUMES ALL RESPONSIBILITY FOR AND ALL RISK OF DAMAGE OR LOSS OF ANY KIND, INCLUDING, BUT NOT LIMITED TO, BODILY INJURY, SICKNESS, DISEASE, DEATH, AND DAMAGES OF ANY KIND (COLLECTIVELY, "***DAMAGE***"), SUSTAINED BY APPLICANT OR ANY OTHER PARTY ARISING OUT OF OR RELATING TO APPLICANT'S (OR APPLICANT'S GUESTS', INVITEES', OR LICENSEES') PRESENCE IN OR USE OF THE FACILITY. THIS ASSUMPTION OF RESPONSIBILITY AND RISK INCLUDES (WITHOUT LIMITATION) SUCH DAMAGE CAUSED, OR ALLEGED TO BE CAUSED, IN WHOLE OR IN PART BY THE NEGLIGENCE OF ANY OF: THE ASSOCIATION, TPHTM 529, LLC, a DELAWARE LIMITED LIABILITY COMPANY, AND ANY OF THEIR RESPECTIVE OFFICERS, DIRECTORS, MANAGERS, MEMBERS (OF AN LLC), COMMITTEE MEMBERS, EMPLOYEES, PARTNERS, AGENTS, SUCCESSORS, ASSIGNS, AFFILIATES, CONTRACTORS, SUBCONTRACTORS OF ANY TIER, SISTER AND PARENT COMPANIES, SUBSIDIARIES, AND INTERRELATED COMPANIES (COLLECTIVELY, THE "***INDEMNIFIED PARTIES***"). APPLICANT ACKNOWLEDGES THAT THE INDEMNIFIED PARTIES ARE NOT INSURERS AND THAT APPLICANT ASSUMES ALL RISKS FOR PERSONAL INJURY, LOSS, DAMAGE, OR DEATH, INCLUDING PERSONAL PROPERTY LOSS OR DAMAGE, AND APPLICANT FURTHER ACKNOWLEDGES THAT THE INDEMNIFIED PARTIES HAVE MADE NO REPRESENTATIONS OR WARRANTIES, NOR HAS THE APPLICANT RELIED UPON ANY REPRESENTATIONS OR WARRANTIES, EXPRESSED OR IMPLIED, AS TO THE SAFETY OF THE FACILITY.

**APPLICANT MUST INDEMNIFY, PROTECT, HOLD HARMLESS, AND DEFEND (ON DEMAND) THE INDEMNIFIED PARTIES FROM AND AGAINST ALL CLAIMS (INCLUDING, WITHOUT LIMITATION, CLAIMS BROUGHT BY APPLICANT OR BY ANY GUESTS, INVITEES, OR LICENSEES OF APPLICANT) IF SUCH CLAIMS ARISE OUT OF OR RELATE TO APPLICANT'S OR ANY OF SUCH THIRD PARTIES' PRESENCE IN OR USE OF THE FACILITY. THIS COVENANT TO INDEMNIFY, HOLD HARMLESS, AND DEFEND INCLUDES (WITHOUT LIMITATION) CLAIMS CAUSED, OR ALLEGED TO BE CAUSED, IN WHOLE OR IN PART BY THE INDEMNIFIED PARTIES' OWN NEGLIGENCE, REGARDLESS OF WHETHER SUCH NEGLIGENCE IS THE SOLE, JOINT, COMPARATIVE OR CONTRIBUTORY CAUSE OF ANY CLAIM.**

**2. Third-Party Claims**

If any action, suit, proceeding, hearing, investigation, charge, complaint, claim, demand, or other matter is asserted or instituted, or any other event occurs, in each case by a person or entity not a party to this Agreement (each, a "***Third-Party Claim***") relating to any matter as to which any Indemnified Party is entitled to indemnification pursuant to this Agreement or the Policy, then the Indemnified Party shall promptly notify Applicant of such Third-Party Claim, provided that the failure to so notify Applicant shall not relieve Applicant of its obligations hereunder. Applicant's duty to defend applies immediately, regardless of whether an Indemnified Party has paid any sums or incurred any detriment arising out of or relating, directly or indirectly, to any third-party claim. An Indemnified Party may select its own legal counsel to represent its interests, and Applicant shall (i) reimburse such Indemnified Party for its costs and attorneys' fees immediately and upon request as they are incurred; and (ii) remain responsible to such Indemnified Party for any damage or losses indemnified hereunder. Applicant shall not, without the applicable Indemnified Parties' prior written consent, settle or compromise any claim or consent to the entry of any judgment regarding which indemnification is being sought hereunder. Further, in the event Third-Party Claims are or have been asserted or instituted against Applicant and one or more Indemnified Parties, and such Third-Party Claims relate to or arise out of the same event, occurrence, or transaction (or a series of events, occurrences, or transactions), then Applicant shall cause any settlement of such Third-Party Claims asserted or instituted against Applicant to also include, without limitation, a comprehensive settlement and release of claims against such Indemnified Parties. Before any use of the Facility, Applicant shall (A) cause its insurance policies (if insurance is required by this Agreement) to be endorsed so that the policies comply with this Section; (B) cause its insurance carriers to comply with this Section; and (C) not permit its insurance carriers to settle any such Third-Party Claims asserted or instituted against Applicant without also

Copyright © 2024 by Roberts Markel Weinberg Butler Hailey PC, all rights reserved. 

obtaining a comprehensive settlement and release of claims against the Indemnified Parties.

**3. Other Claims**

Any Indemnified Party may make a claim for indemnification pursuant to this Agreement or the Policy that does not involve a Third-Party Claim by providing notice to Applicant.

**4. Third-Party Beneficiaries**

The parties hereby designate the Indemnified Parties (other than the Association) as third-party beneficiaries of this Section 2, having the right to enforce this Section 2.

**Applicant Initials: _____**

---

Rental events that do not conform to the requirements and standards stated in the Policy and any violations by Applicant and Applicant's agents, contractors, licensees, invitees, participants, and guests, may result in immediate cancellation or termination of the rental event and the forfeiture of the security deposit.

If you have any questions about this Facility Rental Application and Agreement or about the Policy, please contact the Association at 17171 Park Row, Suite 310, Houston, Texas 77084, by telephone at 281-579-0761, or by email to the email address for the Association's assistant community manager listed on the Association's website: https://www.crest-management.com/Communities/Mason-Woods-Community-Association.

It is agreed by and between the parties hereto that (a) the Policy, (b) the Facility Rental Price Sheet adopted and amended by the Board from time to time, and (c) the Facility Pre/Post Rental Inspection Checklist are made a part of this Agreement and are specifically incorporated in this Agreement by reference for all purposes. Further, Applicant (i) acknowledges receipt of same, (ii) agrees and covenants to be bound by the terms thereof, and (iii) acknowledges that the terms of this Facility Rental Application and Agreement, collectively with above-described documents, represents the complete and integrated Agreement between Mason Woods Community Association, Inc. and Applicant.

Applicant Signature: _____ Date: _____
*(*To be signed at the time Agreement is submitted.)*

Association Representative Signature: _____ Date: _____

Copyright © 2024 by Roberts Markel Weinberg Butler Hailey PC, all rights reserved. 